

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: July 27, 2026

Time: 2:00 PM

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1	Melendez v. FCA US, LLC	The Motion to Compel Arbitration, filed on 5/6/26 by Defendant FCA US, LLC ("FCA") is GRANTED. FCA here has shown by a preponderance of the evidence that a written agreement to arbitrate exists, and has provided a copy, in compliance with C.C.P. § 1281.2 and C.R.C. 3.1330. (Stock Decl., ¶¶ 2-4 and Ex. B.) Plaintiff Luis Cahuantzi Melendez ("Plaintiff") argues that the arbitration agreement (the "Agreement") is not properly authenticated. But for purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication: it is enough for the petitioner to attach a copy or set forth its provisions in the petition itself. (<i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218-219.) Plaintiff has offered no evidence to dispute that he indeed signed the Agreement. The Agreement on its face encompasses this dispute. (ROA 19, Ex. B; ROA 20, Ex. B ["any dispute arising out of or relating to any aspect of the relationship between you and FCA" will be decided by a single arbitration before the AAA].)

		Plaintiff argues that the Agreement is unenforceable, as it is unconscionable. To show that the Agreement is unenforceable due to unconscionability, Plaintiff must show both procedural and substantive unconscionability, although both elements need not be present in the same degree. (<i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 242; <i>Gatton v. T-Mobile USA, Inc.</i> (2007) 152 Cal.App.4th 571, 579.) Here, even if there is some procedural unconscionability based on the adhesive nature of the Agreement, it is a separate document clearly labeled as an arbitration agreement and it expressly includes an opt-out provision. (Stock Decl., Ex. B, ¶ 7.) There is thus only a minimal showing of procedural unconscionability here. Plaintiff therefore must show a high degree of substantive unconscionability to prevail on his argument. Plaintiff argues that there is a lack of mutuality, as the Agreement would effectively apply only to claims that would be made by a buyer, while FCA is not even a signator. But a writing memorializing an arbitration agreement need not be signed by both parties to be binding: it is the presence or absence of evidence of an agreement to arbitrate which matters. (<i>Serafin v. Balco Properties Ltd., LLC</i> (2015) 235 Cal.App.4th 165, 176.) Here, the Agreement states that both Plaintiff and FCA are to be bound, and the Agreement was presented to Plaintiff by what was evidently an authorized FCA dealer acting on FCA's behalf. FCA thus is also bound thereto. Plaintiff also argues that the Agreement lacks consideration. But a mutual promise to arbitrate itself reflects consideration. (<i>Garner v. Inter-State Oil Co.</i> (2020) 52 Cal.App.5th 619, 625.) Plaintiff has thus failed to show unconscionability sufficient to prevent enforcement here. The Motion is therefore GRANTED. Plaintiff's Evidentiary Objections are OVERRULED. Counsel for FCA is to give notice of this ruling.
2	Jimenez v. Betitto's Tow and Service Center, Inc.	Cont. to 10/5
3	Daneshmand v. Tareen	Cont. to 10/5
4	Joseph v. Bell	Before the Court is a motion for undertaking filed by defendants David Bell, DDS, M.D, David Bell, MD, Inc. and Orthognathic Surgery, M.D. (Defendants) against plaintiff Daniel Joseph (Plaintiff.) For the reasons set forth below, the motion is DENIED. Pursuant to Code of Civil Procedure section 1030, when the plaintiff resides out of the state, the defendant may file a motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and recoverable attorney's fees which may be awarded in the action. (Code Civ. Proc., § 1030, subd. (a).) The motion must be supported by points and authorities and affidavits showing: (1) plaintiff's nonresidency; (2) a "reasonable possibility" defendant will

		obtain judgment in the action; and (3) the nature and amount of costs and attorney fees defendant has incurred and expects to incur in the action. (Code Civ. Proc., § 1030, subd. (b).) While it is undisputed Plaintiff is a nonresident, Defendants have failed to establish reasonable probability of obtaining a judgment in the action. The moving party is not required to show there was no possibility that the plaintiff could win at trial, but only that it is “reasonably possible” that the defendant will win. (<i>Baltayan v. Estate of Getemyan</i> (2001) 90 Cal. App. 4th 1427, 1432.) Evidence needed for an undertaking is less than that needed for summary judgment or even a special motion to strike; rather, to satisfy the requirements of section 1030, defendant must produce sufficient evidence to demonstrate they have a reasonable possibility of winning, but no more. (<i>Id.</i> at 1442.) Here, Defendants produced the declaration of their expert, who opines that Dr. Bell met the applicable standard of care during his evaluation, treatment, surgical care and postoperative management relating to Plaintiff’s maxillofacial hardware removal surgery on May 24, 2024. (Ozaki Dec. ¶¶ 8-19.) This evidence shows it is reasonably possible that Defendants may prevail on Plaintiff’s fifth cause of action for professional negligence only. (First Amended Complaint (“FAC”) ¶¶ 50-53.) However, Defendants produced no evidence or argument on Plaintiff’s four other causes of action for breach of contract, breach of implied covenant of good faith and fair dealing, unjust enrichment and fraud – all of which relate to the orthognathic surgery scheduled for June 27, 2024, but which Defendants allegedly cancelled and failed to return the \$80,000 prepaid by Plaintiff. (FAC ¶¶ 33, 38, 42, 45.) As such, Defendants have failed to show reasonable possibility that they “will obtain <u>judgment</u> in the action or special proceeding.” (Code of Civ. Proc. § 1030, subd. (b)[emphasis added].) Defendants having failed to meet their moving burden, the motion is DENIED. Counsel for Plaintiff shall provide notice of this ruling.
5	Vavrinyuk vs. Khouri	Defendants Michael John Khouri and Khouri Law Firm APC (“Defendants”) Demurrer is SUSTAINED, with 20 days leave to amend. Defendants demur to the first cause of action for legal malpractice in plaintiff Arthur Vavrinyuk’s (“Plaintiff”) Second Amended Complaint (“SAC”) based upon lack of sufficient facts. (Civ. Proc. Code § 430.10(e).) “The elements of a cause of action in tort for professional negligence are: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence.” (<i>Mattco Forge, Inc. v. Arthur Young & Co.</i> (1997) 52 Cal. App. 4th 820, 833.)

On 01/11/24, Plaintiff alleges he retained and paid Defendants \$6,000, but was never provided with a written fee agreement as required under Bus. & Prof. Code § 6148. (SAC ¶¶ 6-8.) Defendants were to prepare a writ of administrative mandate challenging the ruling of the Board of Registered Nursing ("Nursing Board"), with writ deadline being 01/20/24. (SAC ¶ 9.) Plaintiff believed the Nursing Board's attempted service of the underlying Accusation and Default Decision were improper despite Plaintiff's attempts to change his address. (SAC ¶ 10.)

On 01/16/24, Defendants confirmed by email they would file a Writ of Administrative Mandate on Plaintiff's behalf. (SAC ¶¶ 11, 16.) Plaintiff repeatedly asked Defendants to act, but Defendants failed to file the writ or act before the deadline. On 01/26/24, Plaintiff demanded return of his retainer, to which Defendants stated by email they would refund and terminate the attorney-client relationship. Also on 01/26/24, Plaintiff discovered Defendants malpractice for failure to file the writ in within the deadline. (SAC ¶ 12.) Plaintiff subsequently filed a petition for ordinary mandate, which was denied as a petition for administrative mandate was Plaintiff's exclusive remedy. (SAC ¶ 13.) Plaintiff was unable to regain his nursing license or work for over three years which caused financial and emotional damages.

Plaintiff's allegation regarding Defendant needing to file an administrative writ of mandate, as opposed to a traditional writ of mandate, is legally correct. Code of Civil procedure § 1094.5, subdivision (a) provides that administrative mandamus is the proper vehicle for court review where inquiry is to be made "into the validity of any final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken, and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer"

In contrast, § 1085, subd. (a) provides that ordinary mandamus lies "to compel the performance of an act which the law specially enjoins, . . . or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled" In other words, ordinary mandamus lies where the challenged action did not involve a legal exercise of discretion, but was one of ministerial duty.

The argument that decisions of the Nursing Board may be challenged by ordinary mandate under § 1085 was squarely rejected in *Morton v. Bd. of Registered Nursing* (1991) 235 Cal.App.3d 1560. In *Morton*, a nurse asserted her writ petition was not barred by the 30 day deadline applicable to administrative mandamus, because the basis of her writ was that the discipline imposed against her was illegal, not that the Nursing Board's decision was an abuse of its discretion. Thus, she argued the Nursing Board violated a mandatory, ministerial duty under the law to not issue the specific discipline imposed. *Id.* at p. 1564.

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The Court of Appeal in *Morton* rejected this argument, observing: "But simply calling a goose a duck will not make it quack. Traditional mandate may apply to review an agency's action if that action is compelled by law and does not involve a factual determination by the agency.⁶ Under that circumstance, "[r]evocation ... constitute[s] a ministerial action by the board rather than quasi judicial action." *Id.* at p. 1566. The court, in footnote 6, noted:

"In some occupations, for example, the Legislature requires automatic license revocation by the governing board if the holder is convicted of a criminal offense. A certificated school teacher accused of "immoral or unprofessional conduct or evident unfitness for service ..." is entitled to a hearing on the charges before the county board of education. Discipline may then be imposed by the Commission for Teacher Preparation and Licensing. (Educ.Code, § 44422.) But if a teacher is convicted of specified sex or narcotics offenses, punishment by the Commission for Teacher Preparation and Licensing is automatic and mandatory. (Educ.Code, § 44425.) There, the commission has no discretion to refuse to revoke the credential of a convicted teacher, and revocation occurs without a hearing. Action by the commission in the former case is quasi-judicial; in the latter it is ministerial."

Thus, where license revocation is automatic under the law (*viz.*, through a criminal conviction), the action of a licensing board is ministerial and reviewable by ordinary mandamus. But where license revocation is not mandatory, such decision is reviewable by administrative mandamus.

Defendants contend that because a default was taken and no hearing held, the decision is reviewable by ordinary mandamus. But even though default may obviate the need for a hearing, the Board of Nursing still exercises its discretion in formulating a penalty. Specifically, Business and Professions Code § 2759 provides:

"The [Nursing Board] shall discipline the holder of any license, whose default has been entered . . . by any of the following methods:

- (a) Suspending judgment.
- (b) Placing upon them probation.
- (c) Suspending their right to practice nursing for a period not exceeding one year.
- (d) Revoking their license.
- (e) Taking other action in relation to disciplining them as the board *in its discretion* may deem proper." (Emphasis added.)

That Plaintiff is challenging the Nursing Board's ruling in part on procedural grounds does not change the equation. § 1094.5, subdivision (b), prescribes the scope of administrative mandamus thus:

"The inquiry in such a case shall extend to the questions whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the

		respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence.” Accordingly, Plaintiff’s allegations regarding Defendants’ failure to timely file a writ of administrative mandamus within the applicable statute of limitations is sufficient to demonstrate a failure to perform legal services competently. As for causation, the SAC alleges: “The administrative record, when last obtained by Plaintiff, does not contain evidence that the Accusation was served at all” The lack of evidence of service may support a finding that a court entertaining a writ of administrative mandamus would have granted relief on that basis. This allegation is sufficient to demonstrate causation. As for damages, Plaintiff makes two key arguments. First, he notes “there is a serious issue about whether the Accusation states a disciplinary offence,” asserting that a domestic violence incident does not fall within “Unprofessional Conduct,” as that term is defined in Business & Professions Code §§2761(a) and 2762. Second, he asserts that no charges were filed against him, and that the minutes from Placer County Superior Court reflect that after a hearing, he was “exonerated.” He further asserts that the incident was an argument that escalated into mutual pushing with no serious injuries. It is unclear if evidence in the administrative record included his alleged “exoneration” or his version of the story recited in the opposition. If there is exculpatory evidence Plaintiff could have presented to the Nursing Board beyond what the board had in its possession, Defendants’ alleged malpractice deprived him of the opportunity to present that evidence upon a remand by the superior court. A jury could consider this additional evidence and determine that had the Nursing Board been presented with this evidence on remand, it would have imposed no or lesser punishment. Plaintiff should be allowed leave to amend to include allegations regarding damages, including the matters addressed in Plaintiff’s arguments made in his opposition as noted above. The demurrer to the SAC is sustained with one final leave to amend. The Court orders the clerk to give notice.
6	Ruffin v. OC Dental Corp., Inc.	O/C
7	The Learning Light Foundation, Inc. v. Sutcliffe	Before the Court at present are proceedings in three related cases, as follows: (1) Case number 30-2026-01565433 (<i>The Learning Light Foundation, Inc., et al vs. Sutcliffe, et al.</i>) (the “Sutcliffe Action”);

		(2) Case number 30-2024-01407963 (<i>Batoon vs. The Learning Light Foundation, Inc., et al.</i>) (the "Batoon Action"); and (3) Case number 30-2026-01568593 (<i>The Learning Light Foundation, Inc. vs. Tayfour</i>) (the "5671 Action"). In the <i>Sutcliffe Action</i>, what is currently before the Court is the OSC re Preliminary Injunction, set at the request of Ms. Tayfour, regarding access to and control of Learning Light Foundation, Inc. ("LLF") funds and accounts, among other things. In the <i>Batoon Action</i>, what is currently before the Court is the continued hearing on the Amended Motion to Disqualify James Lawrence Hanger III as Counsel of Record, regarding the assertion by Ms. Tayfour's counsel that she is counsel for LLF, and that Mr. Hanger is not authorized to represent LLF. In the <i>5671 Action</i>, what is currently before the Court is the continued Case Management Conference. The merits of both the OSC re Preliminary Injunction and the Amended Motion to Disqualify, etc. are in substantial part dependent upon who is authorized to act for LLF and has the right to hire and direct counsel for LLF. The Court will thus address that issue forthwith, in the 5671 Action. An imminent date for an evidentiary hearing in the 5671 Action will thus be set at this hearing. The Court, in conformity with the articles and bylaws to the extent feasible, will determine the person(s) entitled to the office of director and/or may order a new election to be held or appointment to be made. In this process, the Court will have to determine the validity of the issuance of memberships and the right of persons to vote and may direct such other relief as may be just and proper at that hearing.
8	Batoon v. The Learning Light Foundation, Inc.	See above.
9	The Learning Light Foundation, Inc. v. Tayfour	See above.
10	Trejo v. Trejo	The Motion for Leave to Amend brought by Cross-Complainant Carmen Trejo is DENIED, without prejudice to a motion which: (1) Complies with California Rules of Court rule 3.1324; and (2) Attaches the Complaint for which leave will be sought. Cross-Complainant Carmen Trejo seeks leave to file a First Amended Cross-Complaint which adds a claim for Partition. (Motion: 3:23-24.) Cross-Defendants do not oppose the substantive amendment requested. (Opposition: 6:16-17.) Nor do Cross-Defendants appear to dispute the timeliness of the motion; however, as noted by Cross-Defendants, Cross-Complainant failed to comply with California Rules of Court rule 3.1324, within her initial motion.

		The Motion for Leave to Amend did not identify the changes in the proposed pleading as required by California Rules of Court rule 3.1324(a). Nor did the Declaration of Brian Ballo comply with California Rules of Court rule 3.1324(b). While the Supplemental Declaration of Brian Ballo attempts to address this defect, “[i]t is elementary that points raised for the first time in a reply brief are not considered by the court.” (<i>Magic Kitchen LLC v. Good Things Intern. Ltd.</i> (2007) 153 Cal.App.4th 1144, 1161.) Additionally, a trial court may require compliance with California Rules of Court rule 3.1324. (See <i>Hataishi v. First American Home Buyers Protection Corp.</i> (2014) 223 Cal.App.4th 1454, 1469.) In addition to the above, the Supplemental Declaration of Brian Ballo indicates Cross-Complainant Carmen Trejo wishes to alter the proposed pleading attached to the motion. (See ¶3 of Supplemental Ballo Declaration.) Counsel’s Supplemental Declaration requests leave to attach a new Exhibit F to the proposed pleading. (<i>Ibid.</i>) Additionally, “request is made to add a new paragraph 18 attaching the Litigation Guarantee as Exhibit ‘G’ to the FACC, once leave to amend is granted.” (¶3 of Supplemental Ballo Declaration.) These newly proposed alterations deprive Cross Defendants of the opportunity to respond thereto. Moreover, the newly submitted requests ask the Court to approve a complaint which has not, technically, been submitted. Based on the above, and to avoid any due process implications, the motion is DENIED, without prejudice, as specified above. Cross-Defendants to give notice.
11	Sweiss v. Holbrook	Before the Court is a Motion for Summary Judgment brought by cross-defendant Randa Sweiss as to the Cross Complaint filed by Merrill Holbrook. For the reasons set forth herein, the motion is DENIED. “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., §437c(a)(1).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., §437c(c).) “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no

triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “When the notice of motion seeks only summary judgment, the presence of any triable issue requires denial of the motion. The court may not summarily adjudicate claims or defenses as to which no triable issue was raised unless requested in the notice of motion.” (Rutter Guide, Civil Procedure Before Trial, Summary Judgment and Summary Adjudication, Chapter 10-C, § 10.88, citing *Homestead Sav. v. Sup.Ct. (Dividend Develop. Corp.* (1986) 179 Cal.App.3d 494, 498.)

Here, Sweiss argues the first cause of action for Assault fails “because there is no evidence that Sweiss committed any act intended to cause Holbrook apprehension of harmful contact.” (Motion at 7:11-12) Sweiss also argues that “the Battery claim fails because there is no evidence that Sweiss intentionally made harmful or offensive contact with Holbrook. (Motion at 7:26-27)

The Court has reviewed the transcript from Holbrook’s deposition submitted by Sweiss at Exh. B and finds there is question of material fact. At pages 48-54, 67, 79, 83, 84 and 86, Holbrook describes the incidents which occurred as he was exiting the Nixon library on his electric mobility scooter. He describes how the plaintiff and another person used a flag they were displaying as part of a protest to “clothesline” him as he was exiting. He also describes how the plaintiff stepped on his scooter in such a manner as to nearly cause him to fall. While plaintiff may claim it was Holbrook who was the agitator and not the plaintiff, for purposes of summary judgment, there is a triable issue of material fact exists as to the causes of action for Assault and Battery.

Because Sweiss had failed to establish she is entitled to judgment on the entire complaint, the motion is DENIED.

In addition, Sweiss identified 26 material facts in her separate statement. The Court notes that many of the facts include inaccurate citations to evidence. Notwithstanding, Holbrook has effectively disputed “undisputed material fact” numbers 7, 8 and 12, thus further establishing a question of material fact exists and that the motion should be DENIED. (*Insalaco v. Hope Lutheran Church of W. Contra Costa Cnty.* (2020) 49 Cal. App. 5th 506, 522 - “Because a dispute as to any one of these facts means there was a dispute as to a concededly material fact, the trial court erred in granting summary judgment.”)

The Court also notes that the notice of motion originally gave notice for a hearing on 7/20/26. Because the motion was served by email on 4/30/26, that was less than the notice required by Section 437c(a)(2). Although the Clerk continued the hearing to 7/27/26, that does not change the fact that the motion was served with insufficient notice for the original hearing date.

In light of the foregoing, Holbrook’s request to continue the hearing pursuant to Section 437c(h) is MOOT.

		Holbrook's objections contained in his separate statement are OVERRULED. Objections are required to be separately filed. (Rule 3.1354(b).) For the foregoing reasons, the motion is DENIED. Holbrook's request for sanctions is DENIED. Holbrook is ordered to give notice.
12	Pham v. Tran, et. al.	Before the Court is a motion by Brian W. Easton, Esq. in which he seeks to be relieved as counsel for plaintiff Dung Pham. The Court finds the motion has been properly served on Mr. Pham. The Court also finds Mr. Pham will not be prejudiced by Mr. Easton's withdrawal because trial has not been set. Further, because this motion is only brought by Mr. Easton, Mr. Pham will continue to be represented by Saul E. Wolf, Esq. (See Substitution at ROA 72) The Court also finds the motion generally complies with Rule 3.1362. Accordingly, the motion is GRANTED. The Court's ruling will become effective upon the filing of a proof of service of the Court's signed order on Mr. Pham. Mr. Easton is ordered to give notice.
13	Cabrera v. Ponc	Before the Court are two unopposed motions to be relieved as counsel of record for defendants Diego Ponce and P3Elite LLC filed by counsel Monica D. Dib and Nina Jafari. Both motions are GRANTED. Each counsel has complied with the procedural requirements of California Rules of Court, rule 3.1362. The court finds good cause to grant the relief requested on the merits. The order granting relief is effective upon filing of a proof of service of the signed order on the client. Moving counsel shall give notice.
14	Black vs. Mercy House Living Centers	A) Form Interrogatories Defendant Mercy House Living Centers' ("Defendant") unopposed motion to compel plaintiff Kevin Black's ("Plaintiff") further responses to form interrogatories is GRANTED. Plaintiff appears to have failed to serve verifications with any of the interrogatories or requests for production. Failure to serve a verification is "tantamount to no responses at all." (<i>Appleton v. Superior Court</i> (1988) 206 Cal.App.3d 632, 636.) Plaintiff has waived any objections to the Discovery as a result. (<i>Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 906.)

Plaintiff's responses to form interrogatories nos. 2.8, 4.1, and 50.1 – 50.6 are also independently deficient and further objection free responses must be served. (Civ. Proc. Code § 2030.300.)

The court also awards monetary sanctions in favor of Defendant and against Plaintiff in the sum of \$532.50 on this motion, which comes from $\$225/\text{hr.} \times 2.1 \text{ hr.} + \$60 \text{ fee} = \$532.50$. (Civ. Proc. Code § 2030.300(d).) The lowered amount comes from no opposition/reply briefs being filed and the appearance time being split among all five motions.

B) Special Interrogatories

Defendant's unopposed motion to compel Plaintiff's further responses to special interrogatories is **GRANTED**.

Plaintiff's responses to special interrogatories nos. 1 – 21 are deficient and further objection free responses must be served. (Civ. Proc. Code § 2030.300.)

The court also awards monetary sanctions in favor of Defendant and against Plaintiff in the sum of \$532.50 on this motion. (Civ. Proc. Code § 2030.300(d).)

C) Requests for Production

Defendant's unopposed motion to compel Plaintiff's further responses to requests for production is **GRANTED**.

Plaintiff's responses to requests for production nos. 1 – 8; 9-12; 13-19; 22; 31; 32; 34; and 37 are deficient and further objection free responses must be served. (Civ. Proc. Code § 2031.310.) There also does not appear to have been any responsive documents identified or served with the responses.

The court also awards monetary sanctions in favor of Defendant and against Plaintiff in the sum of \$532.50 on this motion. (Civ. Proc. Code § 2031.310(h).)

The cumulative total monetary sanctions in favor of Defendant and against Plaintiff on the three discovery motions is \$1,597.50.

D) Demurrer

Defendant's unopposed demurrer to Plaintiff's first amended complaint ("FAC") is **SUSTAINED**.

The FAC is uncertain and fails to plead sufficient facts against Defendant. (Civ. Proc. Code § 430.10(e) and (f).) As with the original complaint, the FAC is largely unintelligible, contains causes of action which are not valid as titled, and contains causes of action for which Plaintiff appears to lack standing.

As to cause of action ("COA") no. 1 for breach of contract, the COA does not indicate any duties or obligations between the parties or

	any breaches thereof. The purported contract is largely illegible, and Plaintiff has not put forth the terms of the agreement between the parties or how Defendant breached said contract. It also appears at least one of the contracts may have been between Defendant and HUD/FHA, and not Plaintiff. (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal. App. 4th 299, 307.) There are insufficient facts to support this COA and it is uncertain. As to COA no. 2 for false advertising, it COA, unclear how any of the purported advertising was false and how Plaintiff was damaged by the alleged false advertising. (<i>Bower v. AT&T Mobility, LLC</i> (2011) 196 Cal. App. 4th 1545, 1554.) As to COA no. 3 for intentional infliction of emotional distress, Plaintiff failed to allege any specific acts of extreme or outrageous conduct on the part of Defendant or how any of Plaintiff's alleged symptoms were the result of actions by Defendant. (<i>Hughes v. Pair</i> (2009) 46 Cal. 4th 1035, 1050.) Plaintiff's COA no. 4 for 'clinical negligence' appears to be a COA for medical malpractice. There are no facts supporting any medical care which Defendant was required to provide or provided to Plaintiff which fell below the standard of care in the care providing community or which caused injury to Plaintiff. (<i>Johnson v. Superior Court</i> (2006) 143 Cal.App.4th 297, 305.) It also appears Defendant was a provider of residential services and not medical services, so there is a question of duty. As to COA no. 5, Plaintiff alleged no circumstances suggesting discriminatory motive or actions on the part Defendant. (<i>Guz v. Bechtel Nat. Inc.</i> (2000) 24 Cal. 4th 317, 355.) As the FAC does not plead sufficient facts to support any of the COA and it is uncertain, the demurrer is sustained in its entirety. E) Motion to Strike Defendant's unopposed motion to strike is MOOT based on the demurrer being sustained. Plaintiff is given one final leave to file an amended complaint within 15 days of written notice of the ruling. Plaintiff's further responses to interrogatories and requests for production, as well as monetary sanctions, are also due within 15 days of written notice of the ruling. Defendant to give notice.
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